

Αθήνα, 18-11-2024

Αριθ. Πρωτ.: 3199

Απόφαση 34/2024

(Τμήμα)

Η Αρχή Προστασίας Δεδομένων Προσωπικού Χαρακτήρα συνεδρίασε σε σύνθεση Τμήματος μέσω τηλεδιασκέψεως στις 03-10-2024 μετά από πρόσκληση του Προέδρου της, προκειμένου να εξετάσει την υπόθεση που αναφέρεται στο ιστορικό της παρούσας. Παρέστησαν ο Κωνσταντίνος Μενουδάκος, Πρόεδρος της Αρχής, το αναπληρωματικό μέλος Μαρία Ψάλλα, ως εισηγήτρια, σε αναπλήρωση του τακτικού μέλους, Γρηγορίου Τσόλια, ο οποίος, αν και είχε προσκληθεί νομίμως εγγράφως, απουσίασε λόγω κωλύματος και το αναπληρωματικό μέλος, Δημοσθένης Βουγιούκας σε αναπλήρωση του τακτικού μέλους, Κωνσταντίνου Λαμπρινουδάκη, ο οποίος, αν και είχε προσκληθεί νομίμως εγγράφως, απουσίασε λόγω κωλύματος. Στη συνεδρίαση παρέστησαν, με εντολή του Προέδρου, η Κυριακή Καρακάση, νομική ελέγκτρια – δικηγόρος, ως βοηθός εισηγητή και η Ειρήνη Παπαγεωργοπούλου, υπάλληλος του τμήματος διοικητικών υποθέσεων της Αρχής, ως γραμματέας.

Η Αρχή έλαβε υπ' όψιν της τα παρακάτω:

Με την υπ' αριθ. 85/2016 Απόφαση της Αρχής απορρίφθηκε ως ουσία αβάσιμη η με αριθ. πρωτ. Γ/ΕΙΣ/2034/31-03-2015 προσφυγή του Α. Ειδικότερα, ο ανωτέρω προσφεύγων, που κατά το χρόνο υποβολής της ανωτέρω καταγγελίας είχε την ιδιότητα του ιατρού στο Γ.Ν.Α. Χ, ανέφερε ότι η Β, επίσης ιατρός στο αυτό ως άνω Νοσοκομείο κατά τον χρόνο εξέτασης της ανωτέρω υπόθεσης, διαβίβαζε κατ' επανάληψη προσωπικά του στοιχεία σε τρίτους χωρίς την προηγούμενη ενημέρωση και συγκατάθεσή του και χωρίς την ύπαρξη εννόμου συμφέροντος για τη διαβίβαση αυτή.

Με την ανωτέρω απόφαση της Αρχής έγινε δεκτό ότι εκ των στοιχείων του φακέλου προέκυψαν τα εξής: Η Β ορίστηκε με την από ... απόφαση του Διοικητή του ως άνω νοσοκομείου ... του ... Τμήματος και ακολούθως ορίστηκε εισηγήτρια για την εξέλιξη του Α από ... σε ... του Ε.Σ.Υ. Μελετώντας δε το βιογραφικό του αιτούντος στο πλαίσιο της αξιολόγησης της υποψηφιότητάς του, διαπίστωσε ότι αναφερόταν ως αρχισυντάκτης επιστημονικών περιοδικών σε δύο ιστότοπους ελεύθερης πρόσβασης, όπου ανέγραφε, χωρίς να έχει λάβει σχετική άδεια, τον τίτλο του τμήματος και του νοσοκομείου. Ακολούθως η Β στη σχετική της εισηγήση διατύπωσε επιφυλάξεις σχετικά με το κατά πόσο θα ήταν νόμιμη η μοριοδότηση του συγκεκριμένου ως άνω επιστημονικού προσόντος κατά την αξιολόγηση της υποψηφιότητας του αιτούντος και η Γενική Συνέλευση του ... Τομέα αποφάσισε κατά πλειοψηφία την παραπομπή της υπόθεσης στο Επιστημονικό Συμβούλιο. Το τελευταίο δε με την από ... απόφασή του πρότεινε α) τη διενέργεια ΕΔΕ σχετικά με το ζήτημα, β) να σταλεί έγγραφο στην ... Εταιρία για τον έλεγχο της νομιμότητας των επιστημονικών εντύπων τα οποία ανέφερε ο προσφεύγων στο βιογραφικό του και γ) η νομική υπηρεσία του νοσοκομείου να μελετήσει την ύπαρξη πιθανών νομικών θεμάτων στο βιογραφικό φάκελο του προσφεύγοντος.

Περαιτέρω η καταγγελλόμενη απέστειλε από τον ... του ... και εξής ηλεκτρονικά μηνύματα στους εκδότες των περιοδικών γνωστοποιώντας τους ότι άρθρα τους έχουν δημοσιευτεί στα προαναφερόμενα περιοδικά, προκειμένου να τους ενημερώσει σχετικά με το θέμα. Τα αυτά ως άνω ζητήματα των επιστημονικών περιοδικών και της αναφοράς του καταγγέλλοντος ως αρχισυντάκτη στο βιογραφικό του τέθηκαν από την καταγγελλόμενη υπ' όψιν του Προέδρου της ... Εταιρείας με την από ... σχετική επιστολή της προκειμένου να τον ενημερώσει και να διερευνήσει τις πρακτικές και ηθικές διαστάσεις του ζητήματος.

Ακολούθως, τον ... του ... ο καταγγέλλων υπέβαλε εκ νέου αίτηση προαγωγής και η καταγγελλόμενη ορίστηκε εκ νέου εισηγήτρια. Κατόπιν δε του εκδοθέντος πορίσματος της προκαταρκτικής εξέτασης, σύμφωνα με το οποίο οι ανωτέρω ιστότοποι δεν εκπροσωπούν επιστημονική εταιρεία και, επομένως, δεν μπορούν να χρησιμοποιηθούν ως επιστημονικό προσόν από τον καταγγέλλοντα και συστάθηκε στον τελευταίο να αφαιρέσει τη διεύθυνση.

of the hospital which he used as the address of the websites, the complainant submitted a responsible declaration, in which he accepted to be judged without taking into account the aforementioned websites of the scientific journals.

The Authority, with its above-mentioned Decision No. 85/2016, determined that the person being complained about, in her capacity as the temporary head, had the scientific and administrative responsibility of her department and therefore had the authority to evaluate the medical staff regarding their clinical and overall medical work, their compliance with the requirements of the medical profession, their obligations, and their overall service performance in accordance with the provisions of Article 7 paragraph 9 subparagraph e of Law 2889/2001 and Article 36 paragraph 2 of Law 2519/1997. Furthermore, the Authority accepted that the person being complained about, as the reporter for the complainant's advancement, had the authority to collect all necessary information regarding his scientific formation and training, his scientific, research, and clinical work, while she was also responsible for taking into account all the elements of his service file in accordance with Articles 35 and 37 of Law 2519/1997.

Moreover, the Authority concluded that there was no issue of illegal collection of the aforementioned personal information, which was already published on the internet and thus publicly accessible. With the above decision of the Authority, it was further determined that the aforementioned processing took place within the framework of the responsibilities of the person being complained about as the head of the department and within the scope of her duties as the reporter in the grading advancement of the complainant in the National Health System (E.Σ.Υ.).

Specifically, the Authority concluded that the person being complained about had the obligation to inform the publishers of the articles of the journals that were included in the two contentious websites, as well as the President of the Society, of which the complainant was a member, regarding the attribution of any responsibilities, and that in her capacity as head and her obligation, due to this capacity, to evaluate the medical staff, she had the ability to collect certificates from each department regarding the medical employment of the complainant and therefore the processing of the latter's personal data, as carried out, was not illegal. Following the above, the Authority rejected, as previously stated, the complainant's appeal as substantively unfounded, to the extent that the processing consisting of sending electronic messages to the publishers and the letter to the ... Company was deemed lawful, as it took place based on the responsibilities of the person being complained about as the head of the department and as the reporter in the grading advancement of the complainant in the E.Σ.Υ.

Subsequently, the complainant challenged the above decision of the Authority for annulment before the Council of State with his application dated ... (with registration number ...), on which the Authority sent its opinions with protocol number Γ/ΕΞΕ/8255/28-11-2019. Regarding the above annulment request, the Council of State issued its decision number ..., which accepted the request and annulled the aforementioned decision of the Authority. Specifically, with this decision, it was accepted that the Authority correctly determined that the person being complained about had the ability to collect and process the elements of the complainant's service file, that the inquiry into the opinion of the ... Company regarding whether the online journals, in which the applicant appeared as editor-in-chief, constitute scientific journals that can be used as a scientific qualification, as well as the disclosure of the necessary information for forming an opinion, was within the framework of the responsibilities of the person being complained about as the reporter of the applicant, that the provision of the necessary information to the ... Company regarding the operation of these journals for investigating any ethical implications of the matter also fell within her responsibilities as the head of the department where the applicant served, and that within the framework of the responsibilities of this head, the publishers of the contentious journals were informed by her that the department of the hospital that was presented as the headquarters of the aforementioned journals, where their articles had been published, had no relation to or responsibility for the journals. However, the Court determined that the person being complained about did not limit herself to notifying the scientific association, the publishers, and the provider of the personal data of the applicant that were relevant and necessary for achieving the above lawful purposes, but also disclosed personal data concerning the process of his service advancement and administrative and disciplinary actions proposed against him that were not related to serving these

legitimate purposes. With these considerations, the Court, with its above decision number ..., annulled as inadequately reasoned the Authority's Decision No. 85/2016 to the extent that the announcement to the scientific association was considered lawful processing.

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to the publishers and the personal data provider of the applicant, which, according to the judicial decision, were not necessary for the serving of a legitimate purpose and referred the case back to the Authority for a new lawful assessment in accordance with the reasoning of the aforementioned judicial decision.

Following this, in compliance with the above decision no. ... of the Council of State, the case is reintroduced for examination regarding the part that was referred back by this decision. In this context, the Authority summoned A for a hearing via videoconference, with the call no. Πρωτ.

Γ/ΕΞΕ/1267/26-04-2024, and B with the call no. Γ/ΕΞΕ/1268/26-04-2024 on 09-05-2024 at 11:00.

During this session, both parties requested a postponement of the discussion. The above request was accepted by the President of the Department of the Authority, who informed the parties that the discussion would take place on 17-05-2024 at 09:30, again in the context of a videoconference, noting that the parties would not receive new calls. In the postponed hearing via videoconference on 17-05-2024, A was present and presented his views with his lawyer, Petros Tsantinis (AM/DSA ...), as well as B, who was present through her proxy lawyer, Dimitrios Liourdis (AM/DSA ...). During this hearing, the summoned parties were granted a deadline to submit a memorandum to further support their claims by 27-05-2024.

Subsequently, the memorandum no. Γ/ΕΙΣ/4588/27-05-2024 of A was submitted in a timely manner, in which he refers to his appeal no. Γ/ΕΙΣ/2034/2015 as well as to the other documents of the relevant file. Furthermore, he emphasizes that it has been irrevocably determined by the Council of State that the transmission of his personal data by B to third parties included information that was neither relevant nor necessary for the fulfillment of any legitimate purpose. Additionally, the complainant stresses that he was never previously informed by the accused regarding the transmission of his personal data to third parties.

B also submitted in a timely manner the memorandum no. Γ/ΕΙΣ/4602/27-05-2024 after the hearing, in which she briefly states, among other things, the following: Firstly, she acknowledges that she informed the publishers of scientific journals, whose articles A had published on his websites without prior permission, the provider of the websites, and the ... Company about the administration's decision of the Hospital to stop A's service advancement process and to order an administrative inquiry. The accused emphasizes that these very brief references were necessary to avert the legal risks that existed for the hospital department because A listed the address of the hospital department as the location of his scientific journals. It is further noted that the complainant had been informed about the disclosure of his relevant data, as he was present at the assembly of the ... sector, where it was stated that she would address the publishers of the relevant journals (see pages 3 and 8 of the memorandum no. ... after the hearing in conjunction with the reference to the also submitted copy of the ... minutes of the General Assembly of the ... Sector of the General Hospital of Athens X, specifically page ... thereof). Specifically regarding the letter that B sent to the ... Company, where she mentioned the conduct of an administrative inquiry against A, she emphasizes that she believed that this information was necessary to clearly inform the President of the ... Company and that she acted within the authority granted to her by the Scientific Council. She further emphasizes that she did not disclose to the ... Company any document related to the disciplinary process of the complainant, while noting that the professional status of doctors is publicly known and therefore their professional advancement does not fall within the scope of protected personal data. Furthermore, she states that the reference to the publishers and the provider of the relevant websites of the decision of the Scientific Council was necessary and relevant to the purpose of her letter, while she believed that it was also absolutely necessary for the execution of a public interest task or a task that falls within the exercise of public authority as well as for the satisfaction of her legitimate interest.

The Authority, having taken into account the above,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Whereas according to Article 95, paragraph 5 of the Constitution, "The administration is obliged to comply with judicial decisions. The violation of this obligation gives rise to liability for each competent authority, as the law provides. The law specifies the necessary measures to ensure compliance by the administration." Furthermore, according to Article 1 of the executive law of the aforementioned constitutional provision, Law 3068/2002: "The State, local government organizations, and other legal entities under public law are obliged to comply without delay with judicial decisions and to take all actions required for the fulfillment of this obligation and for the execution of the decisions. Judicial decisions, within the meaning of the previous sentence, are all decisions of administrative, civil, criminal, and special courts that create an obligation to comply or are enforceable according to the relevant procedural provisions and the terms set by each decision. [...]".

2. Whereas Article 50, paragraph 4 of Presidential Decree 18/1989 states that "Administrative authorities, in execution of their obligation under Article 95, paragraph 5 of the Constitution, must comply, as appropriate to each case, with positive action towards the content of the decision of the Council, or refrain from any action that is contrary to what has been determined by it. [...]". Furthermore, according to paragraph 5 of the same article, "The decisions of the Plenary, annulment and dismissive, as well as those of the Sections, constitute *res judicata* between the parties that applies in every case or dispute before a judicial or other authority, in which the administrative nature of the issue determined by the Council prevails."

3. Whereas Article 2, subparagraph a of Law 2472/1997, under which the decision of the Authority that was annulled by the aforementioned decision of the Council of State was issued, and which therefore applies in the present case that is being examined in compliance with the judicial decision¹, stipulated the following: "Personal data means any information relating to the data subject."

¹ See Council of State (Plenary) 4313/2015, where in paragraph 14 it is stated: "Whereas, according to the established case law of the Court (Council of State 1665/2013, 3433/2010, 2267/2007, 2228/2005, 419/2000, 952/1996, 1614/1993, 2827/1980 Plenary, 3581/1979 Plenary, etc.), according to the meaning of Articles 95, paragraphs 4 and 5 of the Constitution and 50 of Presidential Decree 18/1989, the annulment of an administrative act by the Council of State restores the case to the time of issuance of the annulled act, and any new act issued in compliance with the annulment decision relates back to that time and is governed, in principle, by the legal and factual regime in force at that time, due to the obligation of the Administration to respect the *res judicata* arising from the annulment decision and to comply with it."

According to Article 2, subparagraph d of the same law, the processing of personal data is understood as any operation or set of operations performed and applied to personal data such as collection, recording, extraction, transmission, dissemination, or other forms of disposal. Also, according to the provisions of Article 4, paragraph 1, subparagraphs b and c of Law 2472/1997, personal data must be relevant, adequate, and not excessive in relation to the purposes of the processing, as well as accurate and, where necessary, kept up to date in order to be lawfully processed. Furthermore, according to the provisions of Article 5, paragraph 2, subparagraph b of Law 2472/1997, in cases where the processing of personal data is exceptionally permitted without the consent of the data subject, it includes the case where the processing is necessary for the fulfillment of an obligation of the data controller imposed by law. Additionally, according to paragraph 3 of Article 11 of Law 2472/1997, it is stipulated that: "3. If the data is disclosed to third parties, the (...) data subject is informed of the disclosure prior to it."

Furthermore, according to the provisions of Article 7, paragraph 8 of Law 2889/2001, as this paragraph was amended by Article 8, paragraph 4 of Law 3868/2010 and by Article 32, paragraph 1 of Law 4025/2011 and was in force at the time of issuance of the annulled decision of the Authority, each department of the hospitals of the National Health System (NHS) is headed by a physician of the corresponding specialty, who holds the position of Coordinating Director or the sole Director or another scientist of the Medical Service with the rank of Director. The director is scientifically responsible for the department. If the department director is absent and until the position is filled, the Administrator,

following a recommendation from the Director of the Medical Service, appoints a temporary head of the department. According to paragraph 9, subparagraph e of the aforementioned article, the department director is responsible for the operation of the department and among other things evaluates, as the first evaluator, the medical staff of the department and the other staff of the department, who belong to the Medical Service. Moreover, according to the provisions of Article 36, paragraph 2 of Law 2519/1997, as they were in force at the time of issuance of the annulled decision of the Authority, a service file is maintained under the responsibility of the department director for the evaluation of the clinical and generally medical work of the NHS doctors, their response to the demands of the medical profession, their compliance with their obligations, and their overall service performance and productivity.

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in which the doctor serves. The personnel file contains the annual reports, which are prepared by the Director of the department or their legal deputy as the first evaluator and the Director of the corresponding sector as the second evaluator and are communicated to the evaluated individual. Regarding the advancement of doctors in the National Health System (E.S.Y.), according to the provisions of Article 4, paragraph A of Law 3754/2009, each specialized doctor in the E.S.Y. advances up to the rank of Director, subject to conditions of prior service time at each rank, as well as according to the educational and scientific criteria provided by Article 35, paragraph 6 of Law 2519/1997. Specifically, according to the provisions of this last article, the awarding of the title of Deputy Director and the promotions of permanent doctors of the E.S.Y. from the rank of Assistant A' to the rank of Assistant B' are made by decision of the Minister of Health, following evaluation and assessment by the relevant Council for the Evaluation and Selection of Medical and Dental Personnel of Healthcare Institutions (S.K.E.I.O.P.N.I.), which includes, among others, two evaluators-reporters of the same or related specialty as the position being evaluated (Article 37 of Law 2519/1997). For the evaluation and assessment, particular consideration is given, among other things, to the scientific composition and training of the candidates, their scientific, research, and especially their clinical work in the hospital, as well as all elements of their personnel file. For the awarding of the title of Deputy Director, particular consideration is also given to the research and writing activity (Article 35, paragraph 6 of Law 2519/1997).

4. Because in this case, as accepted by the aforementioned decision ... of the Council of State, the complainant, who had been appointed as the temporary head of the ... Department of the Hospital and as the reporter in the evaluation process of the complainant, sent from ... onwards to the publishers of scientific journals, articles of which had been posted on two websites, emails in which she informed them that their articles had been published in the aforementioned journals, where the applicant was listed as the editor-in-chief, in order to investigate the ethical and legal (violation of intellectual property rights) aspects, informing them that the department and the hospital have no relation to these journals and that this issue has been duly reported to the Director of the Medical Service and to the Scientific Council of the hospital. Furthermore, the complainant provided some additional information to certain publishers who responded to her initial emails regarding the decisions of the hospital's bodies concerning the conduct of an administrative inquiry against the applicant and the taking of further actions to inform the scientific society ..., also notifying them about the progress of these actions. The above information was also included by the complainant in a letter to the provider of the platform on which the applicant created the aforementioned open-access journals. The aforementioned issues of the legality of the scientific journals and the mention of the complainant as editor-in-chief in his biography, as well as any issues of intellectual property, were brought to the attention of the President of the ... Society with her letter dated In fact, in this letter, she mentioned, among other things, that the promotion of the complainant was interrupted by a decision of the general assembly of the ... sector and the matter was referred to the scientific council, which decided to propose the conduct of an administrative inquiry against the complainant, the informing of the ... society, and the submission of a request for the opinion of the legal advisor.

5. Because, based on the above factual circumstances, which were not altered after the issuance of the above annulment decision of the Council of State, the Court ruled in this decision as follows: The complainant, within the limits of her responsibilities, had the ability, according to Articles 4, paragraph 1

and 5, paragraph 2, subparagraph b of Law 2472/1997, to collect and process personal data of the complainant, to the extent that it was necessary for the exercise of her duties. In light of this, the inquiry into the opinion of the scientific society of the complainant's specialty – according to the proposal of the scientific council – regarding whether the online journals where the applicant was referred to as editor-in-chief constitute scientific journals and can be used as a scientific qualification, as well as the disclosure of the necessary information for the expression of the opinion, which was also published on the internet, regarding the form and nature of the journals, was within the responsibilities of the complainant as the reporter in the evaluation of the complainant. Furthermore, the provision of the necessary information to the aforementioned scientific society regarding the operation of these journals

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For the investigation of any ethical implications of the matter, it fell within the responsibilities of the respondent as the head of the department in which the complainant served. Similarly, informing the publishers that the department of the hospital, which was claimed to be the home of the journals where their articles were published, has no relation to or responsibility for the journals, made in order to avert any potential risk of attributing liability to the department regarding intellectual property issues, fell within the responsibilities of the respondent as the head who bore the scientific and administrative responsibility of the department. However, the respondent did not limit herself to notifying the scientific association and the publishers exclusively and solely of the personal data of the complainant that were relevant and necessary for achieving lawful purposes. On the contrary, she proceeded to disclose to third parties (publishers, the service provider of the publication platform of the journals) personal data of the complainant related to his professional advancement process as well as, primarily, regarding the content of the decision of the scientific council concerning the disciplinary and other administrative actions proposed against him and the course of their implementation, which were in no way related to serving legitimate purposes nor were they relevant or necessary for fulfilling any lawful purpose, but exceeded what was necessary for the third parties (publishers, provider) to be able to investigate any issues of intellectual property and liabilities of the applicant. Furthermore, the disclosure to the scientific association of the personal data of the complainant regarding the disciplinary and other administrative actions proposed by the Scientific Council against him was not necessary for fulfilling the lawful purposes that the letter of the respondent to the association primarily served, namely providing an opinion regarding the electronic journals, of which the applicant was claimed to be the editor-in-chief, and investigating ethical/deontological issues and "attributing any liabilities."

6. Since the disclosure to third parties (publishers, the service provider of the publication platform of the journals) and to the relevant scientific association of personal data of the complainant regarding his professional status and the disciplinary and other administrative actions proposed against him, which, according to the above considerations of the decision of the Council of State, is in no way related to serving legitimate purposes nor was it an action relevant or necessary for fulfilling any lawful purpose, constitutes processing of personal data in violation of Article 4, paragraph 1, subparagraph b of Law 2472/1997. Therefore, there is a case for the imposition of an administrative sanction for the violation of the aforementioned provision of Article 4, paragraph 1, subparagraph b of Law 2472/1997, as the disclosure to third parties of personal data of A exceeded what was required by logical necessity in order to achieve the aforementioned primarily lawful purposes.

7. Since the Authority, in light of the above, deems that, based on the circumstances established, a fine should be imposed, in application of the provision of Article 21, paragraph 1, subparagraph b of Law 2472/1997 for the violation of the provision of Article 4, paragraph 1, subparagraph b of Law 2472/1997, and for this purpose took into account as criteria for the assessment of the said fine: a. the fact that the violations in question concern only one natural person as the subject of the personal data, b. the fact that the respondent acted primarily within the scope of her responsibilities both as a rapporteur in the process of the complainant's advancement and as the head of the department, c. the absence of previous established violations by the respondent, d. the fact that it is not proven that the respondent derived any financial benefit from the relevant violation, and e. the passage of a long period of time since the submission of the relevant complaint before the Authority.

8. Since, in assessing the circumstances, the Authority, after taking into account the criteria outlined

above, considers the administrative sanction mentioned in the operative part to be appropriate for the above violation, which is deemed proportionate to the severity of the violation while additionally constituting an effective measure towards compliance with the provisions regarding the protection of personal data, and at the same time has a deterrent character to prevent further violations of the relevant legislation by the respondent.

FOR THESE REASONS

The Authority

Imposes on the respondent the effective, proportional, and deterrent administrative fine of nine hundred euros (900.00 euros) for the above-established violation of Article 4, paragraph 1, subparagraph b of Law 2472/1997.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou